IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH
(*through* Hybrid Mode)
COURT-I

Item No. 7

CP (CAA) No. 14/Chd/Pb/2023
(2nd motion)

IN THE MATTER OF:

Akm Real Estate Developers Private Limited …Transferor Company

And

Digvijay Chemicals Limited …Transferee Company

Under Section: 230-232, CA 2013

Order delivered on 03.01.2025

CORAM:

SH. UMESH KUMAR SHUKLA
HON'BLE MEMBER (T)

SH. HARNAM SINGH THAKUR
HON'BLE MEMBER (J)

PRESENT:

For the Petitioner	:	Mr. Rahul Jogi, Advocate Ms. Deepali Garg, PCS
For the Income Tax Department	:	Mr. Yogesh Putney, Senior Standing Counsel (for Transferor Company No. 1) Ms. Urvashi Dugga, Senior Standing Counsel (For transferor Company No. 2 and Transferee Company)
For the ROC/ RD	:	Mr. Vineet Khatri, Company Prosecutor
For the Official Liquidator	:	Mr. Edward Augustine George, Advocate

ORDER

In pursuance of order dated 06.12.2024, compliance affidavit has been filed vide Diary No. 1045/21 and response to the report of Income Tax Department has been filed vide Diary No. 1045/20 both dated 19.12.2024. The same are taken on record. So far as the Transferor Company No. 2 is concerned, it is stated by Ms. Urvashi Dugga, Senior Standing Counsel that now there is no other outstanding

demand against the petitioner company no. 2 except Rs. 7,120/- which is now excluded. With respect to Transferor Company No. 1, it is stated by Mr. Yogesh Putney, Senior Standing Counsel that there are losses for the year from 2018-19 to 2023-24, upon which it is submitted by learned counsel for the petitioner companies that they will not carry forward the losses and to that effect the affidavit has been filed vide Diary No. 1045/14 dated 15.07.2024. With respect to Petitioner Company No. 3, it is stated by Ms. Urvashi Dugga, learned senior standing counsel that there is an outstanding demand of Rs. 1,65,57,164/- and according to learned counsel for the petitioner companies, an appeal has been filed against the said outstanding demand and the same is pending before CIT(Appeals).

Heard. Order reserved.

-sd-
(UMESH KUMAR SHUKLA)
MEMBER (T)

-sd-
(HARNAM SINGH THAKUR)
MEMBER (J)

SM